

#	Case Name	Tentative
3	24-01420130 <i>Carr vs. Siefkin</i>	Motion to Compel Deposition (Oral or Written) The motion of plaintiff Natalie Carr for an order compelling non-party witness Trisha Monninger to appear for questioning and produce documents as specified in the deposition notice served on the defendant on September 15, 2025 is DENIED. Although no opposition to the motion has been filed, the motion presents two procedural issues that may prevent the Court from granting it. First, as recognized by the plaintiff in the moving papers, a motion to compel the deposition of a non-party witness must be personally served on that non-party witness per CRC 3.1346. (“A written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record.”) Plaintiff represents in the motion that she was serving the non-party witness with the moving papers by mail and email and would also personally serve her with them as provided in Rule 3.1346. She states that she intended to file a proof of service showing personal service of the moving papers on witness after such service was made, but the Court’s file does not show that plaintiff filed the proof of service. Second, trial in this matter is scheduled for August 17, 2026, which is less than 30 days after the hearing date of the motion and, under Code Civ. Proc. § 2024.020(a), “any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action.” Thus, the instant motion is being heard after the discovery cut-off date, and the Court denied plaintiff’s ex parte application to advance the hearing to a date before the discovery cut-off date. (See minute order of March 3, 2026, corrected nunc pro tunc by second minute order of March 3, 2026, ROAs 77 and 80.)
4	23-01327019 <i>Chavez vs. York Enterprises South, Inc.</i>	Motion for Attorney Fees Plaintiffs’ Motion for Attorney Fees is GRANTED in the amount of \$19,596.60. Plaintiffs seek an award of \$23,789.40, comprised of \$13,976.00 in fees, \$5,620.60 in costs, and a lodestar multiplier of 1.30 in the amount of \$4,192.80. There is no dispute Plaintiffs are entitled to fees and costs, but Defendants contend the fees are excessive. Defendants suggest \$5,444.75 would be appropriate.

		Plaintiffs bear the burden of showing that the hourly attorney rate sought is reasonable. (<i>Christian Research Institute v. Alnor</i> (2008) 165 Cal.App.4th 1315, 1320.) In challenges to the reasonableness of the number of hours billed, “it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.” (<i>Premier Med. Mgmt. Sys., Inc. v. Cal.Ins. Guarantee Ass’n</i> (2008) 163 Cal.App.4th 550, 564.) “General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (<i>Id.</i>) Plaintiffs’ counsel billed for 33.5 hours of work, inclusive of the time spent on the present motion, reply and attending the hearing, at rates between \$295-575/hour for attorneys and \$145/hour for paralegals. (Kirnos Decl., Ex. A at p. 7.) Given that this case was ongoing for almost 2.5 years before it settled, which included written discovery, four depositions and two mediations, the court finds the hours Plaintiffs spent litigating this matter are reasonable. The court also finds the hourly rates are reasonable for this type of litigation in the local legal community. The court declines to award a multiplier because Plaintiffs have not shown this case was particularly novel or complex. Defendants contend Plaintiffs’ costs are unsubstantiated and unreasonable because Plaintiffs failed to attach supporting documentation. However, Plaintiffs filed a verified memorandum of costs on 12/5/25 (ROA 79), which is also attached to Plaintiffs’ supporting declaration (Kirnos Decl., Ex. B). The memorandum of costs appears to include proper costs for filing, jury fees, deposition costs, service of process, and other litigation expenses. Where items appear on their face to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party opposing the costs to show they were not reasonable or necessary. (<i>Jones v. Dumrichob</i> (1998) 63 Cal.App.4th 1258, 1266.) Defendant fails to do so. Defendant also failed to file a motion to strike or tax costs; the deadline to do so has long since passed. (See Cal. Rules of Court, rule 3.1700(b)(1).) Therefore, the request for costs in the amount of \$5,620.60 is granted. The motion is granted. Plaintiff shall recover fees in the amount of \$13,976.00 and costs in the amount of \$5,620.60.
9	25-01519966 Riddick vs. Hanson	Motion to Quash Defendant Joseph Hanson’s Motion to Quash Service of Summons is GRANTED. “If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual